

ONTARIO
**SUPERIOR COURT OF JUSTICE
LONDON SMALL CLAIMS COURT**

BETWEEN:

NANCY JEANNE MILLER

Plaintiff

and

2085337 ONTARIO LIMITED
o/a HAMPTON INN BY HILTON

Defendant

Counsel for the Plaintiff: Bradley Stone

Counsel for the Defendant: Kenneth Raddatz

Heard: May 22, 2014

REASONS FOR JUDGMENT

This action is brought by the Plaintiff against the Defendant for general and special damages as a result of an alleged breach of the Defendant's statutory duty of care to the Plaintiff pursuant to Section 3 of the Occupiers' Liability Act, R.S.O. 1990, ch. O.2.

THE EVIDENCE

Evidence was received from the Plaintiff, Nancy Jeanne Miller, and from Chris Drummond, maintenance supervisor for the hotel on behalf of the Defendant. Both witnesses gave their evidence in a credible and forthright manner and, unless otherwise indicated below, I accept the evidence of both parties.

The Plaintiff is a 55 year old self-employed paralegal living and practising in the City of London. She lives alone.

The Defendant carries on business as Hampton Inn by Hilton, operating a hotel at 840 Exeter Road, London, Ontario (the “Premises”). The Defendant admitted that at all material times it was an “occupier” as defined in the Occupiers’ Liability Act.

The main entrance to the Premises is approached by a two-lane driveway which is covered by a portico. There is a low curb between the laneway and the walkway leading into the front entrance. This curb has a height of approximately one-half inch. There is a further distance of approximately twelve feet from the curb to the doorway. The laneway and walkway under the portico are paved with six inch paving stones.

The entrance doors consist of two sliding glass doors leading into the hotel lobby. The vestibule area between the two sliding glass doors is approximately six feet wide and has a ceramic tile floor.

There was a red mat located on the paving stones just outside of the first glass door. This was an industrial type rubber mat with a carpeted surface and rubber back. The Plaintiff testified that the mat was approximately five feet by seven feet but indicated that she was not sure of its size. Mr. Drummond, on the other hand, testified that the mat was three feet by five feet and that its height at the edge was approximately 1/16th of an inch and at the centre 1/4 of an inch. I accept the evidence of Mr. Drummond over that of the Plaintiff as to the size of the mat as he was an employee of the Defendant and saw the mat on a daily basis. He also testified that this mat was fairly light.

This red mat had the word “Welcome” or a similar word on it and its use was mandated by the Hilton company as a form of branding.

There was a second grey industrial type mat measuring six feet by ten feet in the vestibule. This mat was located on the ceramic tile floor in the vestibule, whereas the red mat was located on the paving stones in front of the first glass door.

There were additional mats located in the lobby and Mr. Drummond testified that, in winter or on wet days, additional mats would be placed in the lobby at the front desk and elevators. The mats are cleaned by a professional cleaning company and recycled once per week.

Mr. Drummond further stated that the purpose of both the red and gray mats was for traction and to prevent the tracking of dirt and mud into the lobby where it could present a hazard. On cross-examination, he admitted that the red mat was not necessary for traction as the paving stones would not be slippery, when wet.

Mr. Drummond said that although there was no checklist for inspection of the mats, he, as well as housekeeping staff and the front desk staff regularly watched the condition of the mats and, if they were bunched up or folded up, would straighten them as necessary. He was not aware of anyone else ever having tripped on the red mat at the front entrance, although he did admit that he was not the person to whom a complaint would be made.

No other witness, such as the Front Desk Manager on duty at the time of the fall, was called on behalf of the Defendant. Unfortunately, the red mat was not produced by the Defendant.

On May 8, 2012, a warm, sunny day, the Plaintiff attended at the Premises. The purpose of her trip was to prepare a meeting room for a seminar which was to be held that evening in the meeting room off the lobby. The group holding the seminar had been meeting at the Premises weekly and she had attended at the Premises on a number of occasions.

Between 2:45 and 2:50 in the afternoon, the Plaintiff parked her car under the portico. She then exited the vehicle and went around to the passenger side where she retrieved a box containing a vase of gerbera daisies from the front seat. She had previously attended the premises earlier that afternoon to deliver some balloon bouquets. After shutting the passenger door of her vehicle, she headed towards the entrance where she noted that both sliding glass doors had been locked in the open position. She testified that she saw the red mat and placed her left foot on the mat and her right foot caught on the mat causing her to trip. She stumbled to her left through the first set of glass doors and then overcorrected and fell on her right side, crashing head first into the corner between the second glass door and the side wall of the vestibule.

The Plaintiff identified the shoes she was wearing at the time of the fall. They appeared to be sturdy, oxford type shoes with a rubber sole and wide one inch heel.

The Defendant tendered as evidence two video clips taken from security cameras on the premises. The first video clip depicts the Plaintiff parking her car under the portico, removing the box and vase from the passenger seat and carrying it in front of her as she moves towards the entrance doors until she leaves camera range. This camera does not show the red mat or the entrance doors. It should be noted that the Plaintiff appears to be moving at a normal or even leisurely pace and does not appear to be in a hurry.

The second security camera is located in the lobby and is pointed towards the inside set of glass doors. The first part of the video clip from this camera shows several persons entering and exiting through the inside glass doors without incident. The Plaintiff then enters from the right side of the frame, almost horizontal to the floor and crashes into the corner head first where she remains for several minutes. At this point of entry into the picture, she is moving rapidly. The crash was violent.

The Plaintiff testified that as she lay in the corner, hotel staff came to her and asked what happened. She pointed to the mat and said something to the effect that the mat outside had tripped her. She then saw that the red mat was folded over with about one-

third of it covered up by the rubber backing. Within minutes, it was straightened by hotel staff. It is common ground that the red mat was not buckled or folded over prior to the Plaintiff reaching it on her way from her car.

The Plaintiff was assisted by hotel staff to a couch in the lobby area. An ambulance was called and she was taken to hospital where, after x-rays, she was told that she had a broken wrist and perhaps a concussion.

The Plaintiff's injuries consisted of:

1. A broken left wrist consisting of fractures of the distal radius and the scaphoid bones.
2. Trauma to the right hand side of the crown of her head resulting in a "goose egg".
3. Bruising to her right leg.
4. Abrasions or "rug burns" to her upper right arm.

As a result of the broken wrist, the Plaintiff wore a cast for six weeks. She testified that she had "pretty intense" pain in the wrist for four to five weeks. She took Advil and sometimes Tylenol for the pain in her wrist as well as for headaches and general body pain. She was given a prescription for Tylenol 3 but didn't take any. She stated that she tried to avoid taking medications generally on principle. The breaks healed without incident and without follow up physical therapy. She testified that two years later she occasionally has some pain in the wrist and has some limitation in the use of her left hand but has not sought further medical attention. She is right-handed. She used a splint on the wrist after the cast was removed and will occasionally still have to use the splint a couple of times a month.

The Plaintiff was monitored by her sister during the night following the fall for signs of concussion. There was no diagnosis of a concussion however. She suffered severe headaches for approximately eight days for which she took Advil and sometimes Tylenol. These headaches and the pain in her wrist interfered with her sleep and

caused her to lose some time from work. The abrasions and the bruising resolved in normal fashion.

PLAINTIFF'S POSITION

The Plaintiff takes the position that the Defendant breached its statutory duty of care pursuant to Section 3 of the Occupiers' Liability Act by placing the red mat where it was not needed and consequently introducing a risk for no reasonable purpose.

DEFENDANT'S POSITION

The Defendant's position is that the Plaintiff has failed to meet the onus upon her and is the author of her own misfortune.

ANALYSIS

Subsection 3(1) of the Occupiers' Liability Act provides as follows:

"An occupier of a premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises."

The Ontario Court of Appeal in *Waldick et. al. vs. Malcolm et. al.* (1989) 70 O.R. (2d) 717, (Ont. C.A.) (Paragraph 19) commenting on Subsection 3(1) of the Occupiers' Liability Act has stated:

"All Courts have agreed that this section imposes on occupiers an affirmative duty to make the premises reasonably safe for persons entering them by taking reasonable care to protect such persons from foreseeable harm. The section assimilates occupiers' liability with the modern law of negligence. The duty is not absolute, and occupiers are not insurers liable for any damages suffered by persons entering their premises. Their responsibility is only to take "such care as in all the circumstances of the case is reasonable." The trier of fact in every case must determine what standard of care is reasonable and whether it has been met."

The following cases cited to the Court by the Defendant are all cases where the Plaintiff's claim was dismissed on the basis that the Defendant had met the standard of reasonableness. The hazard in each of these following cases was a temporary hazard for which the occupier had put in place a reasonable surveillance plan to minimize the hazard.

Bjerregaard vs. Westfair Foods Ltd. (2003) 127 A.C.W.S. (3d) 179 (B.C.S.C.) - slip caused by single grape on store floor.

Dowbenko Estate vs. Westfair Foods Ltd. (1997) 116 Man. R. (2d) 20 (M.C.Q.B.) – fall after tripping on bunched up vestibule runner.

George vs. Covent Garden Market Corp. (2007) 159 A.C.W.S. (3d) 465 (O.S.C.J.) – fall after tripping on bunched up vestibule runner.

Hibberd vs. William Osler Health Centre (2009) 173 A.C.W.S. (3d) 1255 (O.S.C.J.) – slip on wet hospital floor.

Those cases can be distinguished from the case at bar for the following reasons. In this case, the hazard was created by the actual presence of the red mat in an inappropriate place. I do not accept the Defendant's submissions that the red mat was placed at the entrance for the purpose of traction or to prevent dirt from being tracked into the lobby where it would create a hazard. No traction was necessary at that point as the paving stones gave sufficient traction. Nor was the mat necessary in order to prevent dirt from being tracked into the lobby as there was an even larger mat in the vestibule as well as mats in the lobby and extra mats were brought in to be placed in front of the front desk or at the elevators when the weather was wet or snowy. I find that the only purpose for the red mat was for decorative or branding purposes as dictated by the head office.

I take judicial notice of the fact that paving stones, no matter how skillfully laid, are not as even as a ceramic tile floor or other flat interior floor surface. It is quite conceivable that someone could catch the edge of this mat and stumble. Furthermore, the mat was

smaller, lighter and probably thinner than the gray mat and could be more easily flipped over.

By placing this type of mat on an outside surface consisting of paving stones, the Defendant introduced a hazard which served no reasonable purpose. In these circumstances, the occupier Defendant did not take such care as in all the circumstances of the case were reasonable.

This, in my opinion, created a danger which was reasonably foreseeable by the Defendant and no plan of surveillance could protect against this risk. I am satisfied that, had the red mat not been placed on the paving stones at the front entrance, the Plaintiff would have entered the Premises safely on this occasion. I therefore find that the Defendant has breached its statutory duty of care to the Plaintiff and is liable for her damages.

DAMAGES

NON-PECUNIARY DAMAGES

Two years after the accident, all of the Plaintiff's injuries have resolved without any problems except for some residual pain from time to time and limited use of the Plaintiff's left hand. I assess Ms. Miller's non-pecuniary damages at \$22,000.00.

PECUNIARY DAMAGES

Although the Plaintiff testified that she did lose some time from work because of her injuries, she was not able to quantify those damages and therefore made no claim for them.

I allow the Plaintiff the following pecuniary damages:

a) ambulance fee -	\$45.00
b) fiberglass cast -	\$27.00
c) car rental -	\$881.95
d) front closing bras -	\$46.30
e) splint -	\$20.00
f) extra chiropractic care -	\$140.00
g) hospital parking -	\$15.75
h) Ministry of Health and Long Term Care subrogated claim	\$1,499.20
Total -	\$2,675.20

I do not allow the Plaintiff's claim for cost of massage therapy and the Reiki treatment as there was no evidence connecting the necessity of this treatment to her injuries. I further do not allow the claims for housecleaning and food purchases. I am not convinced that these were absolutely necessary in the circumstances.

JUDGMENT

The Plaintiff will therefore have Judgment against the Defendant in the amount of \$24,675.20 together with pre-judgment interest at the rate of 5% per annum on the non-pecuniary damages pursuant to Subsection 128(2) of the Courts of Justice Act and Rule 53.10 of the Rules of Civil Procedure and pre-judgment interest at the rate of 1.3% per annum on the pecuniary damages.

COSTS

If the parties cannot resolve the issue of costs, the Plaintiff may serve and file submissions, not to exceed two pages in length, excluding attached offers to settle, within ten days of receiving these reasons and the Defendant seven days thereafter.

May 30, 2014

Deputy Judge Glenn C. Walker